

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/11/08/2021.

Date: 17th August 2021.

To,

The Collector.

Office of Collector,

Mumbai Suburban District,

Administrative Building,

9th floor, Government Colony,

Opp. Chetana College, Bandra (East),

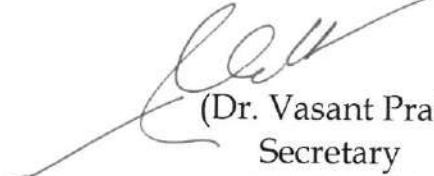
Mumbai-400 051

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint
No. CC006000000058136 filed by **Nazira Hasnain Lala & Hasnain
Akbar Ali Lala in Project No. P51800003040.**

Sir,

I am forwarding the recovery warrant under Section 40(1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/11/08/2021.

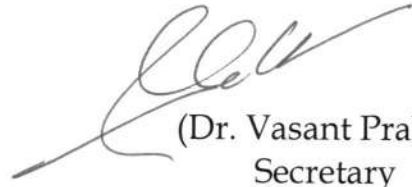
Date: 17th August 2021.

1.	Name and address of the firm: -	Nazira Hasnain Lala Hasnain Akbar Ali Lala 301, JP Residency, Chincholi Bandar Road, Malad West, Vivanta hospital, Mumbai - 400064. Mobile No.- +91-9930195291 Email ID: - adv.sanjeev@yahoo.co.in
2.	The sum to be recovered.	Refund of Amount of Rs. 12,15,500 /- along with interest as prescribed by RERA from the dates of payment till full realisation of the amount as per order dated. 5 th December 2019.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40 (1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.
4.	No. & Date of order under which amount is ordered to be recovered.	Complaint No.: CC006000000058136 Final Order dated: 5 th December 2019
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	M/s. Sahyog Homes Limited PAN No.- AANCS8142D 321, Morya Estate, New Link Road, Andheri West, Opposite Infinity Mall, Mumbai Suburban - 400053. Mr. Ajander Singh (Authorized Signatory) PAN No.- BAJPS3967A

		321, Morya Estate, New Link Road, Andheri West, Opposite Infinity Mall, Mumbai Suburban - 400053. Details of Contact person: Mr. Rahul Shelar - Authorised Person Mobile No.- +91- 9222167824 Email ID: - rahul.shelar@sahyoghomes.com
6.	Full details of the property of defaulter against which the process may be executed.	Project known as “Verona” situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 406 pt, 407 pt, 410/C 1 pt, 1C/3 pt. a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800003040. b) Other apartments which are still not booked and not mortgaged to any Financial Institutions /Bank. Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No./II No. of the property	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of

	f) Area of the property in square meters g) CTS No. of the property area of the property.	defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.
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Mumbai
Date: 17th August 2021


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/11/08/2021.

Date: 17th August 2021.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000058136

Project No: P51800003040

Nazira Hasnain Lala

Hasnain Akbar Ali Lala

--- Complainant.

Versus

M/s. Sahyog Homes Limited

--- Respondent.

To,
The Collector.
Office of Collector,
Mumbai Suburban District,
Administrative Building,
9th floor, Government Colony,
Opp. Chetana College, Bandra (East),
Mumbai-400 051

Whereas the above-named complainant has filed the above complaint No. **CC006000000058136**, and the Authority/Adjudicating Officer passed the enclosed order wherein the respondent was directed to consider the complainants as allottees in the project it will register with MahaRERA. The complainants were also given the liberty to seek refund of the amounts.

And whereas the respondent has failed to comply with the order and the complainants are seeking refund of their amount paid.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation

and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

Nazira Hasnain Lala

Hasnain Akbar Ali Lala

301, JP Residency, Chincholi Bandar Road, Malad West, Vivanta hospital, Mumbai - 400064.

Mobile No.- +91-9930195291

Email ID: - adv.sanjeev@yahoo.co.in

2) Name of respondents/promoters/directors/partners with their addresses:

M/s. Sahyog Homes Limited

PAN No.- AANCS8142D

321, Morya Estate, New Link Road, Andheri West, Opposite Infinity Mall, Mumbai Suburban - 400053.

Mr. Ajander Singh -

(Authorized Signatory)

PAN No.- BAJPS3967A

321, Morya Estate, New Link Road, Andheri West, Opposite Infinity Mall, Mumbai Suburban - 400053.

Details of Contact person:

Mr. Rahul Shelar -

Authorised Person

Mobile No.- +91- 9222167824

Email ID: - rahul.shelar@sahyoghomes.com

3. Name of the project & its location:

Project known as "**Verona**" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. **406 pt, 407 pt, 410/C 1 pt, 1C/3 pt.**

a) Housing project which is duly registered under the RERA Act bearing Registration No. **P51800003040.**

a) Other apartments which are still not booked and not mortgaged to any Financial Institutions/Bank.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.

4) Particulars of immovable property and any other movable and immovable property:

a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC – namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

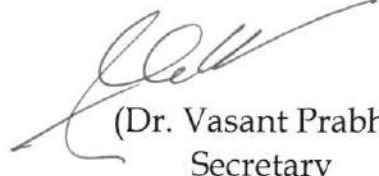
5) Amount to be refunded:

Refund of Amount of Rs. 12,15,500/- along with interest as prescribed by RERA from the dates of payment till full realisation of the amount as per order dated. 5th December 2019.

6) Enclosures:

- i) Final order dated. 5th December 2019.
- ii) Order of Non-compliance dated. 25th June 2021.

Mumbai
Date: 17th **August 2021**



(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai